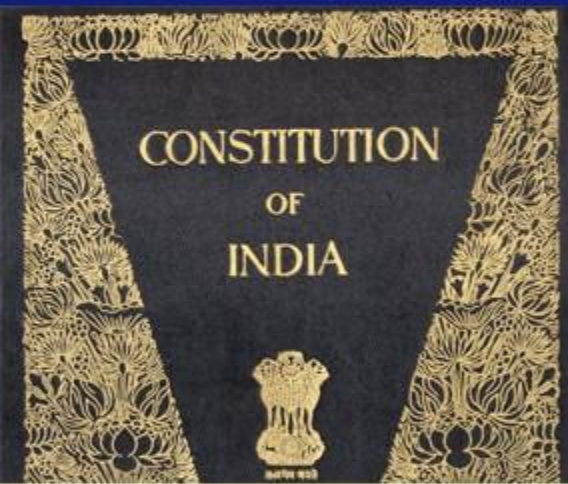


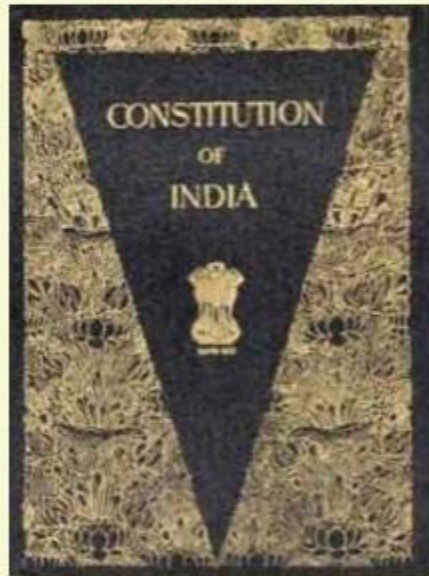
INDIAN POLITY



MODULE - 12

SALIENT FEATURES OF THE CONSTITUTION

(PART-1)



**SALIENT
FEATURES OF THE
CONSTITUTION**

THE SALIENT FEATURES OF THE CONSTITUTION

INTRODUCTION



- The Constitution of India is remarkable for many outstanding features, which are borrowed from almost every Constitution of the World.
- The salient features of the Constitution as it stands today are as follows.

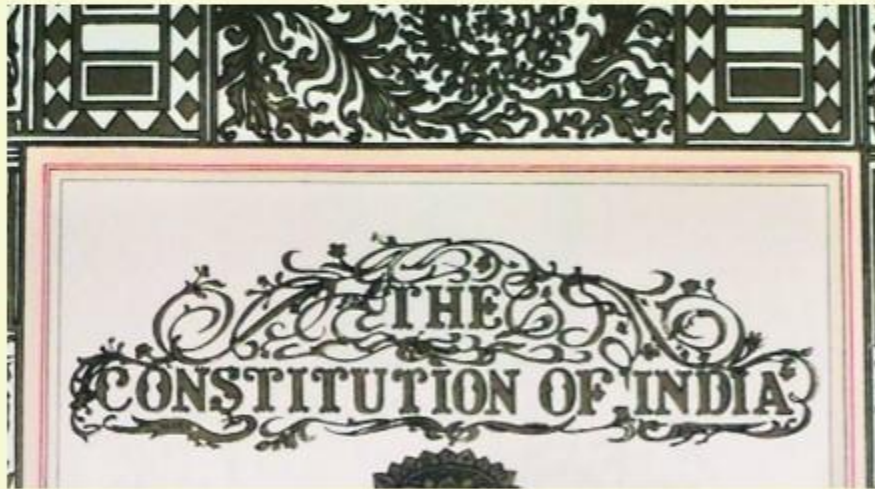
SUMMARY OF SALIENT FEATURES OF THE INDIAN CONSTITUTION

- 1 DRAWN FROM DIFFERENT SOURCES
- 2 LENGTHIEST WRITTEN CONSTITUTION
- 3 MORE FLEXIBLE THAN RIGID
- 4 PARLIAMENTARY FORM OF GOVERNMENT
- 5 FEDERAL SYSTEM WITH UNITARY BIAS
- 6 INTEGRATED AND INDEPENDENT JUDICIARY
- 7 JUDICIAL REVIEW MAKES THE CONSTITUTION LEGALISTIC
- 8 SYNTHESIS OF PARLIAMENTARY SOVEREIGNTY AND JUDICIAL SUPREMACY
- 9 FUNDAMENTAL RIGHTS
- 10 DIRECTIVE PRINCIPLES OF STATE POLICY
- 11 FUNDAMENTAL DUTIES
- 12 SECULAR STATE
- 13 UNIVERSAL ADULT FRANCHISE
- 14 SINGLE CITIZENSHIP
- 15 INDEPENDENT BODIES
- 16 EMERGENCY PROVISIONS
- 17 THREE-TIER GOVERNMENT
- 18 CO-OPERATIVE SOCIETIES

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 1

DRAWN FROM DIFFERENT SOURCES



- 1 Our Constitution has been prepared after “ransacking all the known Constitutions of the World”.
- 2 This was done keeping in mind the needs of the various sections of the people in our country.
- 3 So though our Constitution is said to be a “borrowed constitution”, the credits of its framers lies in gathering the best features of each of the Constitutions and in modifying them with a view to avoid the faults, which are present in those Constitutions.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 1

DRAWN FROM DIFFERENT SOURCES



4 There were members in the Constituent Assembly, who criticized the Constitution as an imitation of the West. They say that it is a “patchwork” of several constitutions.

5 Many apprehended that it would be unworkable. But the fact that it had survived for many years while many Constitutions have sprung up only to wither away in countries around us proves the apprehension of the critics wrong.

INDIAN POLITY

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 1

DRAWN FROM DIFFERENT SOURCES



- 6 The Constitution has borrowed most of its provisions from the **Government of India Act of 1935**.
- 7 The **Philosophical part** of the Constitution (Fundamental Rights and Directive Principles of State Policy) derive their inspiration from **American and Irish Constitutions** respectively.
- 8 The **Political part** of the Government like the Principle of Cabinet Government etc., have largely drawn from the **British Constitution**.

SOURCES OF THE CONSTITUTION...A QUICK GLANCE

S.No	SOURCES	FEATURES BORROWED
1	Government of India Act of 1935	Federal Scheme , Office of Governor, Public Service Commissions, Emergency Provisions and administrative details
2	British Constitution	Parliamentary Government, Rule of Law, single Citizenship, Cabinet system, Prerogative writs, Parliamentary privileges and Bicameralism
3	US Constitution	Fundamental Rights , Judicial review, Impeachment of the President, Removal of Supreme Court and High Court Judges and post of Vice-President
4	Soviet Constitution	Fundamental duties and the Ideal of Justice
5	Irish Constitution	Directive Principles of State Policy, Nomination of members to the Rajya Sabha and the Method of the Election of the President

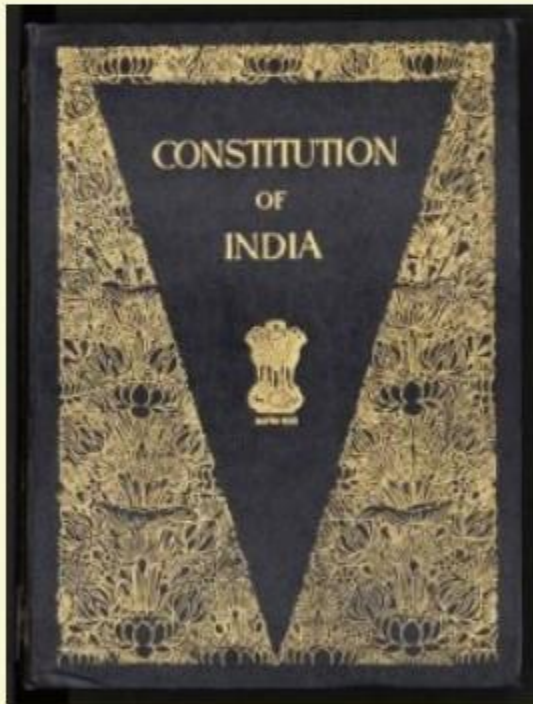
SOURCES OF THE CONSTITUTION...A QUICK GLANCE

S.No	SOURCES	FEATURES BORROWED
6	Canadian Constitution	Federation with strong Centre , vesting of residuary powers in the Centre, Appointments of the State Governors by the Centre and Advisory Jurisdiction of the Supreme Court
7	Australian Constitution	Concurrent list , joint sitting of two houses of the Parliament
8	South African Constitution	Procedure for the Amendment of the Constitution and election of Members of the Rajya Sabha
9	Weimar Constitution of Germany	Suspension of Fundamental Rights during Emergency
10	French Constitution	Republic, the ideals of liberty, equality and fraternity
11	Japanese Constitution	Procedure established by law

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION



1 The Constitution of India is the **longthiest of all the written** Constitutions of the world. Originally(1949) the Constitution contained **a Preamble, 395 Articles and 8 Schedules**.

2 Various Amendments have added and deleted many parts of the Constitution. Four factors have contributed to the Elephantine size of our Constitution They are

- a) **Geographical Factors**- The vastness of the country and its diversity.
- b) **Historical factors**- The influence of Government of India Act, 1935, which was bulky.
- c) **Single constitution** for both Centre and States except Jammu and Kashmir.
- d) **Dominance of the legal luminaries** in the Constituent Assembly.

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

Let us now examine this extraordinary bulkiness of the constitution with more details...

1

INCORPORATES THE ACCUMULATED EXPERIENCE OF THE DIFFERENT CONSTITUTIONS

1

The framers sort to incorporate the accumulated experience gathered from working of all the known Constitutions.



2

Also they tried to **avoid all the defects and close the loopholes** that might be anticipated in those Constitutions.

3

Our constitution is more full of words because certain provisions which were borrowed from other Constitutions were modified in order **to minimise uncertainty and avoid unnecessary litigation.**

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

2 DETAILED ADMINISTRATIVE PROVISIONS INCLUDED

1 Not contented with merely laying down the fundamental principles of Governance, the authors of the Indian Constitution provided matters of administrative details also.

2 It was felt that smooth working of an infant democracy might be jeopardized unless the Constitution mentioned in detail things which were left in other Constitutions to ordinary legislation.

3 This explains why we have in our Constitution detailed provisions about the organisation of the judiciary, the Public Service Commission, elections and so on



THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

2

DETAILED ADMINISTRATIVE PROVISIONS INCLUDED



4

Our Constitution makers had the **ideal of “exhaustiveness”**, which explains why the provisions of the Indian Constitution as to the division of powers between the Union and the States are **more numerous than perhaps the aggregate of provisions relating to that subjects in the Constitutions of the USA, Australia and Canada put together.**

5

Also much of the Constitution was borrowed from the GoI Act of 1935, because it was felt that the people were more familiar with the working of this particular law.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LENGTHIEST WRITTEN CONSTITUTION

3

PECULIARITY OF THE PROBLEMS TO BE SOLVED

1

The vastness of the country and peculiar problems like problems of Scheduled Caste and Tribes, the problems of Backward Classes and the problems of the status of official language and another relating to emergency provisions etc have also contributed towards the bulkiness of our constitution.



THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

4

CONSTITUTION OF THE UNITS ALSO INCLUDED

1 The Constitution of the United States deals only with Federal Government and leaves the States to draw up their own Constitution.

2 However, the Indian Constitution provides the Constitution of both the Union and the units (States) with the same fullness and precision.



3 Since the units of federation are different in the historical origin and political development, special provisions were needed for some of the States of the Centrally Administered areas and the former Indian States.

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

4

CONSTITUTION OF THE UNITS ALSO INCLUDED



4

That is why Jammu and Kashmir was accorded a special status and was allowed to make its own Constitution.

5

Similarly, special provisions have been inserted through Articles 371 to 371 (J) to meet the regional problems and demands in certain States like Nagaland, Assam, Manipur, Andhra Pradesh, Maharashtra, Gujarat, Sikkim, Mizoram, Karnataka etc.

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

5

FEDERAL RELATIONS ELABORATELY DEALT WITH

1 Not only our provisions relating to the units elaborately given, the relations between the Centre and the States and the relation amongst the States themselves, whether legislative or administrative are also exhaustively codified so as to eliminate conflicts as far as possible.

2 The lessons drawn from political history of India also induced the framers of Constitution to give it an unitary bias regarding the distribution of powers and functions between the Union and the States.



THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

6

BOTH JUSTICIABLE AND NON-JUSTICIABLE RIGHTS
INCLUDED



1

Our Constitution provides for a bill of rights containing justiciable Fundamental Rights of the individual following the American constitution.

2

It also provides for the Directive Principles which confers no justiciable rights upon the individual, but regarded as the fundamental in the governance of the country (As borrowed from the Constitution of Ireland).

INDIAN POLITY

THE SALIENT FEATURES OF THE CONSTITUTION

POINT NO. 2

THE LONGTHIEST WRITTEN CONSTITUTION

6

BOTH JUSTICIABLE AND NON-JUSTICIABLE RIGHTS INCLUDED

3 The Constitution makers believed that this **would serve as moral restraints on future Governments.**



4 Even the Bill of Rights (i.e Fundamental Rights) became bulkier than anywhere else in the world owing to **peculiar problems of our country like untouchability etc.**

5 Notable addition is also made by the 42nd Amendment by adding Fundamental Duties of citizens, which are without any legal sanction.

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao

K. Srikanth

D. Sunil Kumar

L. V. Krishna

Y. Deepthi

Amrita Naidu

M. Binukrishna

G. Ravi Babu

D. Joji

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